KENNEDY CHIUNGANO
vs
BARZEM ENTERPRISES (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
CHILIMBE & V. NDLOVU JJ
HARARE; 10 June & 23 June 2025 & 11 March 2023

Civil Appeal

HIGH COURT OF ZIMBABWE
Commercial Division
ISSUED
12 Mar 2026
HARARE
JUDICIAL SERVICE COMMISSION

Mr T.Chakurira, for the appellant
Mr D. Peneti, for the respondent

V. NDLOVU J: This is an appeal against the whole judgment of the Magistrates' Court, Harare, delivered on November 25 2024, in which the Court granted an application for *rei vindication* in a matter involving a motor vehicle.

BACKGROUND

The appellant was employed by the respondent since 2008 and was retrenched in September 2022. At that point, he retained possession of a specific motor vehicle—a white Nissan Hardbody pick-up truck with registration number AEF 0647. The respondent then initiated an application for *rei vindicatio*.

PROCEEDINGS BEFORE THE COURT A QUO.

The respondent contended that the car was allocated to the appellant solely as part of his employment benefits and asserts that the vehicle was supposed to be returned immediately upon termination of the employment contract. The respondent argued that the appellant's right to possess and use the car ceased with the termination of his employment, characterising the appellant's retention of the vehicle as unauthorised and unjustified. Consequently, the respondent sought the court's approval for the application for *rei vindicatio*, along with a request for an order for costs.

In his response, the appellant raised a point *in limine*, asserting that the matter was *lis pendens*, as it was concurrently pending before the Labour Court. He emphasised that it was

unresolved whether the vehicle was part of his retrenchment package, indicating that this issue was subject to arbitration before the Honourable Marasha. The appellant argued that the disputed vehicle was integral to the ongoing discussions regarding his retrenchment package and asserted that he had acquired a legal right to possess the car, claiming this right originated from an arrangement established during the retrenchment negotiations. He subsequently requested that the respondent's application be dismissed with costs on a higher scale.

FINDINGS BY THE COURT A QUO

The court *a quo* dismissed the appellant's point *in limine* regarding *lis pendens*, ruling that it did not meet the requirements outlined in *Gasi* v *Med Health Care* HH 259/2022. On the merits of the case, the court concluded that the respondent had successfully proven, that the vehicle belonged to it. The court reaffirmed the legal principle that an owner has the right to vindicate their property from anyone holding it against their will. This principle was emphasised as not being subject to debate or dispute. Following this ruling, the appellant filed an appeal, contesting the court's findings.

PROCEEDINGS BEFORE THIS COURT



GROUNDS OF APPEAL

1. The court *a quo* erred at law and misdirected itself when it failed to consider documentary evidence presented before it in dealing with the question of whether or not the matter was *lis pendens*.
2. The court *a quo* erred at law and in fact when it found as proved that the employment contract between the parties had been terminated by retrenchment when the same question was before the Labour Court, a court of superior jurisdiction.
3. Furthermore, the court *a quo* erred and misdirected itself at law and in fact by failing to consider all the evidence in support of the applicant’s defence to the effect that he has a legal right to retain the motor vehicle in question.

4. To this end, the Magistrate erred and misdirected herself by failing to consider the requirements for an application for *rei vindicatio* against the valid defence by the respondent (appellant herein).

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RELIEF SOUGHT

The appellant prayed for the following relief;

1. The appeal is hereby allowed with costs on a higher scale.
2. 2. The whole judgement by Magistrate B Taruvinga sitting at Harare Magistrates Court, handed down on the 25th of November 2024 under Case Number HREC-CD 1857/24, be set aside and replaced with the following order:

   "The application for *rei vindicatio* be and is hereby dismissed with costs on a higher scale."

The appellant argued that the court *a quo* erred in concluding that his employment contract had been terminated. He argued that the matter was fundamentally a labour dispute and thus more appropriately addressed within the Labour Court. While initially arguing that the matter was *lis pendens,* the appellant later changed course and conceded that nothing was pending in the Labour Court about the motor vehicle in particular. At the same time, he argued that the retrenchment process was still ongoing before a Labour Officer. He argued that the matter was improperly before the court due to ongoing retrenchment negotiations, asserting his entitlement to the vehicle based on his employment status. He further argued that the car was intended to be given to him as part of the retrenchment package, reiterating that, given the ongoing nature of the retrenchment process, he remained an employee and was thus entitled to retain possession of the motor vehicle.

The respondent argued the question of whether the appellant possessed a right of retention of the vehicle. According to the respondent, former employees, such as the appellant, are required to return work-related equipment to the employer upon termination of their employment. Furthermore, the respondent argued that there was no pending matter before the Labour Court, clarifying that the only ongoing issue was with the Labour Officer. He argued that employees cannot legally retain property that belongs to their employer, ultimately concluding that the appellant's appeal was without merit.

ISSUES FOR DETERMINATION:

a. Whether or not the matter was *lis pendens.*
b. Whether or not the appellant's employment contract was terminated.
c. Whether the appellant has a right to retain the motor vehicle
d. Whether or not *actio rei vindication* applies in this matter?

THE LAW

> "*Lis pendens* is a special plea open to a defendant who contends that a suit between the same parties concerning a like thing and founded upon the same cause of action is pending in some other court. It matters not, in my view, that the matters have been brought by way of application and the other by way of action. It is not so much the vehicle by which the matters have been brought to court but the nature of the issues and relief sought, that is, the substance and not the form."

Herbstein and Van Winsen in *Civil Practice of the High Courts and the Supreme Court of Appeal of South Africa, 5th ed,* at p 605,

The requirements to successfully defend a claim of *lis pendens* are;

a) There must be another pending matter
b) Between the same parties
c) On the exact cause of action
d) In respect of the same subject matter."

Gasi v *Med Health Care* HH 259/2022 per MANZUNZU J.



The two essential elements for a successful claim of *rei vindication* are that,

1. The applicant must prove ownership of the property, and,
2. It must be demonstrated that the property is currently in the respondent's possession without a lawful basis.
   Chenga v *Chikadaya* SC7-13

Rei vindicatio is a remedy available to a property owner seeking repossession of his or her property from any possessor possessing it without his consent.

Hamtex Investments (Pvt) Ltd v *King* 2012 (2) ZLR 334 (H)

Suppose the respondent in a claim for rei vindication establishes that the applicant is not the owner of the property in question or that the property in question no longer exists and can no longer be identified or that the respondent's possession of such property is lawful or that he or she is no longer in physical control of the property. In that case, the *rei vindicatio* claim will fail.

Chetty v *Naidoo* 1974 (3) SA 13 (A)

Residents of Joe Slovo Community v *Thabelisha Homes* 2010 (3) SA 454 (CC).

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APPLICATION OF THE LAW TO FACTS

a) Whether or not the matter is *lis pendens*?

The appellant argued that the matter was *lis pendens* and that the court *a quo* erred in its conclusion to the contrary. It was, and still is, a common cause that what is pending before the Labour Officer has nothing to do with the motor vehicle which is the subject matter of this appeal. The appellant admitted that the awaiting matter pertained to the terms of his retrenchment and associated packages, excluding the motor vehicle in issue. The issues raised before the labour officer did not and do not include the appellant's right to retain the motor vehicle. The court correctly recognised that a related dispute over retrenchment does not justify the appellant's retention of the car, which belongs to the respondent. The court *a quo* did not err in dismissing the point *in limine*, as the appellant failed to satisfy the requirements of *lis pendens*. Consequently, the court *a quo's* decision is upheld and the first ground of appeal is dismissed.

b. Whether or not the employment contract has been terminated

The appellant's retrenchment is a common cause fact. The appellant is not reporting for work. The appellant is currently employed by another company. The parties are before the Labour Officer solely because of the termination of the appellant's employment. Any reference to the Labour Court is without merit. The appellant conceded as much in this court. The appellant's argument lacks factual grounding. It is established that the appellant's employment has been terminated. The second ground of appeal lacks merit and is duly dismissed.

c. Whether or not the appellant had the right to retain the motor vehicle?

It is a well-established principle of the law that a dismissed employee has no right to retain the employer's property, regardless of any disputes concerning the termination of employment.

Chisipite Schools Trust (Pvt) Ltd v *Clark* 1992 (2) ZLR 224,

Zimbabwe Broadcasting Holdings v *Gono* 2010 (1) ZLR 8 (H),

Lafarge Cement (Zimbabwe) Ltd v *Chatizembwa* HH 413-18.

Netone v *Kangai* HH 90-22,

Barzem Enterprises v *Thabani Gonye* HH 279/25.

The appellant has no right to retain the car in question. The third ground of appeal is duly dismissed as lacking merit.

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d. Whether or not *actio rei vindication* applies in this matter?

In this case, it is undisputed that the respondent is the lawful owner of the motor vehicle that the appellant seeks to withhold possession of. The car was allocated to the appellant for use during his employment, which terminated in 2022. The respondent has demonstrated their ownership of the car, having provided it to the appellant as a service vehicle. Ownership was never transferred to the appellant. The respondent is the rightful owner of the car, and the appellant is currently in possession of the vehicle in question without the respondent's consent, thus fulfilling the requirements for *rei vindication.* No authority has been cited supporting the argument that an action for *rei vindicatio* cannot proceed due to an ongoing dispute regarding the retrenchment package. This assertion appears to distract from the main issue. The appellant's grievances regarding the termination or the retrenchment package are of no moment in the circumstances of this matter. With respect, the appellant did not raise any recognisable defence to the claim. See *January* v *Maferefu* SC-14-20 at p. 7 wherein the defences to a *rei vindication* claim were stated as being;

(i) that the applicant is not the owner of the property in question.
(ii) that the property in question no longer exists and can no longer be identified
(iii) that the respondent's possession of such property is lawful.
(iv) that the respondent is no longer in physical control of the property.

Therefore, the court *a quo* was correct in determining that *rei vindicatio* does apply in this case. The fourth ground of appeal is dismissed for want of merit.

DISPOSITION

Appellate courts are generally hesitant to overturn findings made by trial courts unless there is apparent misdirection or an unreasonable conclusion. The intervention is justified only when a lower court's conclusion is so illogical that it cannot be upheld. The above circumstances do not arise in this matter. The respondent has successfully met the requirements for *rei vindicatio* by

proving ownership of the motor vehicle and demonstrating that the appellant is unlawfully in possession of it. No defence is available to the appellant. The respondent's claim for *rei vindicatio* is therefore upheld. This appeal lacks merit. Consequently, I order as follows;

ORDER

The appeal is hereby dismissed with costs.

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V. NDLOVU J:

CHILIMBE J: **Agrees**

Zimudzi and Associates, the appellant's legal practitioners
Maguchu & Muchada Business Attorneys, respondents' legal practitioners